

25STUD13346 25STUD13346

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-07-15

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Case Number: 25STUD13346 Hearing Date: July 15, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STUD13346

GRAFTON

PACIFIC DEV LLC vs STILL GOOD LA, LLC

July

15, 2026

8:30

AM

NATURE OF PROCEEDINGS:

MOTION OF DOMINIC J. TRUTANICH, TRUTANICH & ASSOCIATES, TO BE RELIEVED AS
COUNSEL-CIVIL.

RULING:

The Court grants the Motion.

The Court will complete, sign and file the Form Order received-stamped on June 9, 2026.

Moving attorney to give notice.

ANALYSIS:

By the Motion, filed June 9, 2026, counsel moves to be relieved as attorney of record for Defendant FREE ELECTRON LLC, by declaring, in the form Declaration, at paragraph 2: "The attorney-client relationship between Defendant and attorney has irrevocably broken down due to irreconcilable differences. Defendant has failed to return phone calls and emails. Defendant has failed to appear at the trial date. Defendant failed to cooperate in settlement negotiations. Defendant failed to cooperate with attorney in preparing a defense. Defendant has also failed to pay legal fees for impending jury trial."

Here, the form notice, declaration, proposed order, and proof of service sufficiently comply with the requirements for a motion to be relieved as counsel. (See Cal. Rules of Court, rule 3.1362.)

Further, moving counsel's declaration shows cognizable grounds for withdrawal:

A breakdown in the attorney-client relationship (or personality clash). (Estate of Falco v. Decker (1987) 188 Cal.App.3d 1004, 1014 (Falco).)

The client by conduct renders it unreasonably difficult for the member to carry out the employment effectively (e.g., noncooperation or noncommunication). (Rules Prof. Conduct, rule 1.16(b)(4). Cf. Falco, supra, 188 Cal App.3d at p. 1020 ["We find no abuse of discretion in the trial court's implicit finding rejecting the contention

that respondents' lack of cooperation justified appellants' withdrawal."].)

The client breaches an agreement or obligation to the member as to expenses or fees. (Rules Prof. Conduct, rule 1.16; Lempert v. Superior Court (2003) 112 Cal.App.4th 1161, 1173.)

Finally, no opposing document is filed in order to show any prejudice caused by attorney withdrawal. (See Rules Prof. Conduct, rule 1.16(d); Vann v. Shilleh (1975) 54 Cal.App.3d 192, 197.)

Therefore, the Court grants the Motion and will sign the proposed Order counsel submitted.